

2	Pedroza vs. First National Insurance Company of America 30-2025-01529067-CU-PO-CJC	Motion to be Relieved as Counsel of Record The motion of attorney Tina Abdolhosseini to withdraw as attorney of record for plaintiff Rosa Maria Pedroza is GRANTED. (Code Civ. Proc., § 284, Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney to give notice.
3	Jurado vs. Stater Bros. Market 30-2024-01397840-CU-PO-CJC	Motion for Leave to File First Amended Complaint Plaintiff, Cathlene Jurado's motion for leave to file first amended complaint (FAC) is GRANTED. Defendant, ADA Solutions, Inc., named as Doe 26, is a relatively new defendant in the action and could have been brought into the case regardless of how the Court ruled on the summary judgment motion. Plaintiff is seeking to amend the complaint to assert a cause of action fitting the facts regarding ADA Solutions, Inc. as opposed to Stater Bros. Market. ADA Solutions, Inc. is free to raise its contentions about timeliness and sufficiency of the allegations after the FAC is filed. Plaintiff is ORDERED to file and serve the FAC within 5 days. Plaintiff to give notice.
4	Zapien vs. Westcliff Plaza Retail LLC 30-2025-01465822-CU-PL-CJC	Motion for Leave to File First Amended Answer Defendants A.V.W., Inc. dba Max Pro and Crown Hardware, Inc. dba Crown Ace Hardware's unopposed Motion for Leave to File a First Amended Answer is GRANTED. Defendants are ORDERED to file and serve the amended answer within 5 days. Defendants to give notice. Motion for Leave to File Cross-Complaint Defendants A.V.W., Inc. dba Max Pro and Crown Hardware, Inc. dba Crown Ace Hardware's unopposed Motion for Leave to File a Cross-complaint is GRANTED.

		Defendants are ORDERED to file and serve the cross-complaint within 5 days. Defendants to give notice.
5	Galstyan vs. Mercedes-Benz USA, LLC 30-2026-01565539-CU-PL-CJC	Motion to Compel Arbitration and Stay Proceedings Defendant Mercedes-Benz USA, LLC's (MBUSA) Motion to Compel Arbitration and Stay Proceedings is GRANTED. Plaintiff's request for judicial notice is DENIED. MBUSA's request for judicial notice is GRANTED as to Exhibits 1.1 and 2-5 (Evid. Code, § 452, subd. (c)) and otherwise DENIED. MBUSA moves to compel arbitration pursuant to a "Motor Vehicle Lease Agreement" between Plaintiff identified as the Lessee and dealership House of Imports in Buena Park as Lessor (Lease). (Newman Decl., ¶ 3, Ex. B.) Plaintiff does not dispute the existence of the Lease. None of Plaintiff's claims against MBUSA seek to enforce any contractual term or any express or implied warranty contained in the Lease. Thus, Plaintiff's claims "are not intimately founded in or intertwined with the sales contracts," and equitable estoppel does not apply. (See <i>Ford Motor Warranty Cases</i> (2025) 17 Cal.5th 1122, 1126, 1134-1135.) The arbitration provision expressly identifies MBUSA as a third party beneficiary (Newman Decl., Ex. B at p. 4), so MBUSA may enforce the arbitration provision as a third party beneficiary. The Lease provides any dispute which arises out of or relates to the lease or any resulting transaction or relationship arising out of this lease, including any such relationship with third parties who do not sign this contract, will be resolved by arbitration. (Newman Decl., ¶ 3, Ex. B at p. 4.) As Plaintiff does not demonstrate the arbitration provision cannot be interpreted to cover her claims, the Court finds the Lease covers Plaintiff's claims. "Both procedural unconscionability and substantive unconscionability must be shown, but 'they need not be present in the same degree' and are evaluated on 'a sliding scale.'" (<i>Pinnacle Museum Tower Assn. v. Pinnacle</i>